

Figure: 28 TAC §1.601(a)(2)(B)

Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company or HMO first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company or HMO. If you don't, you may lose your right to appeal.

[Insert insurance company or HMO name]

To get information or file a complaint with your insurance company or HMO:

Call: [insert title] at [insert phone number]

Toll-free: [insert phone number]

[optional] Online: [insert company URL]

Email: [insert email address]

Mail: [insert mailing address]

The Texas Department of Insurance

To get help with an insurance question or file a complaint with the state:

Call with a question: 1-800-252-3439

File a complaint: www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail: MC 111-1A, P.O. Box 149091, Austin, TX 78714-9091

¿Tiene una queja o necesita ayuda?

Si tiene un problema con una reclamación o con su prima de seguro, llame primero a su compañía de seguros o HMO. Si no puede resolver el problema, es posible que el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés) pueda ayudar.

Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas o de apelaciones de su compañía de seguros o HMO. Si no lo hace, podría perder su derecho para apelar.

[Insert insurance company or HMO name]

Para obtener información o para presentar una queja ante su compañía de seguros o HMO:

Llame a: [insert title] al [insert phone number]

Teléfono gratuito: [insert phone number]

[optional] En línea: [insert company URL]

Correo electrónico: [insert email address]

Dirección postal: [insert mailing address]

El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros o para presentar una queja ante el estado:

Llame con sus preguntas al: 1-800-252-3439

Presente una queja en: www.tdi.texas.gov

Correo electrónico: ConsumerProtection@tdi.texas.gov

Dirección postal: MC 111-1A, P.O. Box 149091, Austin, TX 78714-9091

Guaranty Fund Nonparticipation Notice

This insurance contract is with an insurer not licensed to transact insurance in this state and is issued and delivered as surplus line coverage under the Texas insurance statutes. The Texas Department of Insurance does not audit the finances or review the solvency of the surplus lines insurer providing this coverage, and the insurer is not a member of the property and casualty insurance guaranty association created under Chapter 462, Insurance Code. Chapter 225, Insurance Code, requires payment of a 4.85% (insert appropriate tax rate) percent tax on gross premium.

TEXAS NOTICE

(Surplus Lines)

IMPORTANT NOTICE

To obtain information or make a complaint:

You may contact the Texas Department of Insurance to obtain information on companies, coverages, rights or complaints at:

1-800-252-3439

You may write the Texas Department of Insurance:

P.O. Box 149104

Austin, TX 78714-9104

Fax: (512)475-1771

Web: <http://www.tdi.state.tx.us>

E-mail: ConsumerProtection@tdi.state.tx.us

PREMIUM OR CLAIM DISPUTES:

Should you have a dispute concerning your premium or about a claim you should contact the agent first. If the dispute is not resolved, you may contact the Texas Department of Insurance.

ATTACH THIS NOTICE TO YOUR POLICY: This notice is for information only and does not become a part or condition of the attached document.

AVISO IMPORTANTE

Para obtener informacion o para someter una queja:

Puede comunicarse con el Departamento de Seguros de Texas para obtener informacion acerca de companias, coberturas, derechos o quejas al:

1-800-252-3439

Puede escribir al Departamento de Seguros de Texas:

P.O. Box 149104

Austin, TX 78714-9104

Fax: (512) 475-1771

Web: <http://www.tdi.state.tx.us>

E-mail: ConsumerProtection@tdi.state.tx.us

DISPUTAS SOBRE PRIMAS O

RECLAMOS: Si tiene una disputa concerniente a su prima o a un reclamo, debe comunicarse con el agente primero. Si no se resuelve la disputa, puede entonces comunicarse con el departamento (TDI).

UNA ESTE AVISO A SU POLIZA: Este aviso es solo para proposito de informacion y no se convierte en parte o condicion del documento adjunto.



Berkshire Hathaway Specialty Insurance

Date: **January 23, 2023**

To: **Jorgen Andersson**
Willis Towers Watson Northeast, Inc.
200 Liberty Street, 6th Floor
New York, NY 10281

Re: **EnCap Investments L.P.**
D&O, EPLI, Fund, E&O Policy
42-EPF-301044-06

Dear Jorgen:

I am very pleased to enclose the Binder of Insurance for EnCap Investments L.P. under our D&O, EPLI, Fund, E&O Policy. This policy is underwritten by National Fire & Marine Insurance Company, a member of Berkshire Hathaway's National Indemnity group of insurance companies, which hold financial strength ratings of A++ from AM Best and AA+ from Standard & Poor's.

Please review this document at your earliest convenience and notify me of any questions or concerns.

Thank you for considering Berkshire Hathaway Specialty Insurance Company. We value our relationship with you and Willis Towers Watson Northeast, Inc. and look forward to working with you on future accounts.

Sincerely,

Jessica Newton
917-960-2419
jessica.newton@bhspecialty.com



CLAIMS REPORTING

All claims under policies underwritten by Berkshire Hathaway Specialty Insurance should be reported to our centralized Loss Processing Center. Claims will be assigned to our technical staff or to one of our preferred service providers.

Our 24 hour toll free number for all claims: **855.453.9675**

Cyber claims can be reported to this dedicated email address where specialists are available to respond:

CyberClaimsNotice@bhspecialty.com

For all other claims, please forward to:

ClaimsNotice@bhspecialty.com

To report claims via mail or overnight mail refer to our website:

www.bhspecialty.com/claims

EXPECT A PERSONAL APPROACH

While technology adds speed and efficiencies, it is top-quality people that drive top-quality claims handling. That's why we continue to grow our industry-leading claims team with the most experienced claims professionals in the business.

Moreover, at Berkshire Hathaway Specialty Insurance, our claims team makes communicating proactively with you throughout the claims process a priority. Should you face a claim, you will quickly see our response is not about drafting letters, it's about having a dialogue—and responding to your particular needs and concerns.

Whether you face a D&O claim, a property loss or a large scale casualty crisis, you will have the experts you need at your service. Putting your policy to work for you.



National Fire & Marine Insurance Company
D&O, EPLI, Fund, E&O Policy
Binder of Primary Insurance

Date: January 23, 2023

Parent Company: EnCap Investments L.P.
Mailing Address: 9651 Katy Freeway
Houston, TX 77024

Policy Period: Effective from January 23, 2023 to January 23, 2026;
Both days at 12:01 am local standard time at the mailing address of the Parent Company.

Policy Number: 42-EPF-301044-06
Form Number: Manuscript

Aggregate Limit of Liability	\$10,000,000
Retention	\$250,000 EPL \$1,000,000 all other
Premium	\$1,410,000^
Commission	15%
Optional Extension Period	One Year / \$705,000
Pending and Prior Proceeding Date	January 23, 2000

^Premium above does not include any applicable surplus lines taxes or fees

FORMS AND ENDORSEMENTS:

Cap on Losses From Certified Acts of Terrorism
Notice Of Service Of Suit
OFAC/ECONOMIC SANCTIONS
Schedule of Entities Endorsement

NOTICES:

- Policyholder Disclosure Notice of Terrorism Insurance Coverage
- Broker Responsible for Surplus Lines Form
- Texas Complaint Notice

Office of Foreign Assets Control (OFAC) Disclosure Notice:

This binder, the continuation of any bound insurance, and any payments to you, to a claimant or to another third party, may be affected by the administration and enforcement of U.S. economic embargoes and trade sanctions by the office of Foreign Assets Control (OFAC), if we determine that any such party is on the "Specially Designated Nationals or Blocked Persons" list as maintained by OFAC.

Terms and Conditions:

- This binder is being provided by a non-admitted carrier.
- Compliance with all surplus lines placement requirements, including stamping the policy and collection and payment of premium of surplus lines taxes, is the responsibility of the broker.
- Premiums do not include applicable surplus lines taxes or fees.
- Premium is due within 30 days of the Effective Date of the policy.
- This binder is based on information received and is subject to reconsideration if materially different or additional information is obtained.
- Premium for Certified Acts of Terrorism Coverage under Terrorism Risk Insurance Act 2002 is \$0, which is included in the policy premium above.
- Some coverages/endorsements provided in this binder may differ from that requested in your submission. Please review carefully.
- The policy will include the exclusions and endorsements noted above.

Subject To:

- Completed "Broker Responsible for Surplus Lines" Form Within 10 Days of Binding

Important: This binder shall be considered by all parties as strictly conditioned upon:

- (1) receipt, review and acceptance by the Insurer of the Subject To information above, if any; and
- (2) no material change in the risk occurring or submission of any claim or circumstances that might give rise to a claim, between the date of this binder indicated above and the effective date of the proposed Policy Period.

If such required information is not received, reviewed and accepted, or such material change in the risk occurs or any claim or circumstances are submitted, the Insurer may in its sole discretion, modify and/or withdraw this binder upon written notice, regardless of whether or not this binder already has been accepted or premium paid.

This binder is cancelled when replaced by a policy.

Please notify us if the information contained herein is incorrect.

Please feel free to contact our office with any questions you may have or if you need any further clarification on any portion of this Binder of Insurance. Thank you for doing business with Berkshire Hathaway Specialty Insurance on behalf of National Fire & Marine Insurance Company.

Sincerely,

A handwritten signature in black ink, appearing to read 'Sanjay Godhwani', with a long horizontal flourish extending to the right.

Sanjay Godhwani
Authorized Representative

POLICYHOLDER DISCLOSURE NOTICE OF TERRORISM INSURANCE COVERAGE

You are hereby notified that under the Terrorism Risk Insurance Act, as amended, you have a right to purchase insurance coverage for losses resulting from acts of terrorism. *As defined in Section 102(1) of the Act:* The term “act of terrorism” means any act or acts that are certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

YOU SHOULD KNOW THAT WHERE COVERAGE IS PROVIDED BY THIS POLICY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM, SUCH LOSSES MAY BE PARTIALLY REIMBURSED BY THE UNITED STATES GOVERNMENT UNDER A FORMULA ESTABLISHED BY FEDERAL LAW. HOWEVER, YOUR POLICY MAY CONTAIN OTHER EXCLUSIONS WHICH MIGHT AFFECT YOUR COVERAGE, SUCH AS AN EXCLUSION FOR NUCLEAR EVENTS. UNDER THE FORMULA, THE UNITED STATES GOVERNMENT GENERALLY REIMBURSES 80% (BEGINNING ON JANUARY 1, 2020) OF COVERED TERRORISM LOSSES EXCEEDING THE STATUTORILY ESTABLISHED DEDUCTIBLE PAID BY THE INSURANCE COMPANY PROVIDING THE COVERAGE. THE PREMIUM CHARGED FOR THIS COVERAGE IS PROVIDED BELOW AND DOES NOT INCLUDE ANY CHARGES FOR THE PORTION OF LOSS THAT MAY BE COVERED BY THE FEDERAL GOVERNMENT UNDER THE ACT.

YOU SHOULD ALSO KNOW THAT THE TERRORISM RISK INSURANCE ACT, AS AMENDED, CONTAINS A \$100 BILLION CAP THAT LIMITS U.S. GOVERNMENT REIMBURSEMENT AS WELL AS INSURERS’ LIABILITY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM WHEN THE AMOUNT OF SUCH LOSSES IN ANY ONE CALENDAR YEAR EXCEEDS \$100 BILLION. IF THE AGGREGATE INSURED LOSSES FOR ALL INSURERS EXCEED \$100 BILLION, YOUR COVERAGE MAY BE REDUCED.

Acceptance or Rejection of Terrorism Insurance Coverage

☐	I hereby elect to purchase terrorism coverage for a prospective premium of \$0. NOTE: Unless you sign and return this form to us on or before thirty days following the effective date of the subject policy rejecting coverage for losses arising out of certified acts of terrorism, the coverage will be <u>included</u> in the policy subject to all other policy terms, conditions, limits and exclusions (including, but not limited to, exclusions for war, nuclear events, and acts of terrorism not certified by the Secretary of the Treasury). Your premium for this coverage will be as shown above.
☐	I hereby decline to purchase terrorism coverage for certified acts of terrorism. I understand that I will have no coverage for losses resulting from certified acts of terrorism.

If the Terrorism Risk Insurance Act of 2002, including all amendments thereto, is not extended in the future, then terrorism coverage under this policy may be affected and we will return a pro-rata amount of this charge accordingly.

_____ Policyholder/Applicant’s Signature	_____ National Fire & Marine Insurance Company Insurance Company
_____ Print Name	_____ 42-EPF-301044-06 Policy Number
_____ Date	



SURPLUS LINES FORM

IMPORTANT: THIS AGREEMENT MUST BE COMPLETED BY THE BROKER RESPONSIBLE FOR SURPLUS LINES FILINGS

Date: January 20, 2023	To:	Willis Towers Watson Northeast, Inc.
	Address:	200 Liberty Street, 6th Floor New York, NY 10281
	Returned To:	Jessica Newton
Re:	Insured:	EnCap Investments L.P.
	Policy #:	42-EPF-301044-06
	Effective Date:	January 23, 2023

This policy is written on a surplus lines basis by: **National Fire & Marine Insurance Company**

In the insured's home state of: Texas (see attached definition of home state)

As the producing broker, it is **your** responsibility to arrange for the payment of the state tax and/or stamping fee on **100%** of the premium for this policy.

Please return a copy of this letter within 10 **business days** of receipt with your acknowledgment that you have arranged for the filing and payment of the surplus lines tax and/or stamping fee in accordance with the state regulation.

*Please list licensed surplus lines broker:

Individual's Name:

Firm:

Firm Address:

Surplus Lines License Number:

(for the insured's home state)

New Jersey SLA # (Transaction Number)

assigned to this policy (if the insured's home state is NJ):

Producing Broker (Print Name)

Date: _____

***The producing broker agrees that, upon request by the company or any insurance regulator, the broker will provide a copy of the surplus lines license referenced above as well as any documentation supporting the payment of surplus lines taxes and applicable fees hereunder.**

DEFINITIONS:

HOME STATE –

- (A) In general. – Except as provided in subparagraph (B), the term “home state” means, with respect to an insured –
- (i) the state in which an insured maintains its principal place of business or, in the case of an individual, the individual’s principal residence; or
 - (ii) if 100 percent of the insured risk is located out of the state referred to in clause (i), the state to which the greatest percentage of the insured’s taxable premium for that insurance contract is allocated.
- (B) Affiliated Groups. – If more than 1 insured from an affiliated group are named insureds on a single non-admitted insurance contract, the term “home State” means the home State, as determined pursuant to subparagraph (A), of the member of the affiliated group that has the largest percentage of premium attributed to it under such insurance contract.

AFFILIATE – The term “affiliate” means, with respect to an Insured, any entity that controls, is controlled by, or is under common control with the Insured.

AFFILIATED GROUP – The term “affiliated group” means any group of entities that are all affiliated.

CONTROL – An entity has “control” over another entity if –

- (A) the entity directly or indirectly or acting through 1 or more other persons owns, controls or has the power to vote 25 percent or more of any class of voting securities of the other entity; or
- (B) the entity controls in any manner the election of a majority of the directors or trustees of the other entity.

PRINCIPAL PLACE OF BUSINESS – The term “principal place of business” means, with respect to determining the home state of the Insured:

- (A) the state in which an Insured maintains its headquarters and the Insured’s high level officers direct, control and coordinate the business activities; or
- (B) if the Insured is a company which maintains outside any state its headquarters where the Insured’s high level officers direct, control and coordinate the business activities, (for example a foreign company headquartered in a foreign country), then the state where the largest percentage of the risk resides, i.e. the state to which the greatest percentage of the Insured’s taxable premium for the insurance contract is allocated.

PRINCIPAL RESIDENCE – “Principal residence” means, with respect to determining the Home State of the insured, (a) the state where the insured resides for the greatest number of days during a calendar year; or (b) if the insured’s principal residence is located outside any state, the state to which the greatest percentage of the insured’s taxable premium for that insurance contract is allocated.

STATE – The term “state” includes any state of the United States, the District of Columbia, the Commonwealth of Puerto Rico, Guam, the Northern Mariana Islands, the U.S. Virgin Islands, and American Samoa.

Where you can get information or make a complaint

If you have a question or a problem with a claim or your premium, contact your insurance company first. You can also get information or file a complaint with the Texas Department of Insurance.

National Fire & Marine Insurance Company

To get information or file a complaint with your insurance company:

Call: AVP, Compliance, 646.802.3597

Toll-free: 855.453.9675

Online: bhspecialty.com

Email: Complaints.US@bhspecialty.com

Mail: 1314 Douglas Street, Suite 1400, Omaha, NE 68102-1944

The Texas Department of Insurance

To get help with an insurance question, learn about your rights, or file a complaint with the state:

Call: 1-800-252-3439

Online: www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail: MC 111-1A, P.O. Box 149091, Austin, TX 78714-9091

To compare policies and prices

Visit **HelpInsure.com** to compare prices and coverages on home and auto insurance policies. The website is a service of the Texas Department of Insurance and the Office of Public Insurance Counsel.

Donde puede obtener información o presentar una queja

Si tiene una pregunta o un problema con una reclamación o con su prima de seguro, comuníquese primero con su compañía de seguros. Usted también puede obtener información o presentar una queja ante el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés).

National Fire & Marine Insurance Company

Para obtener información o para presentar una queja ante su compañía de seguros:

Llame a: AVP Compliance, 646.802.3597

Teléfono gratuito: 855.453.9675

En línea: bhspecialty.com

Correo electrónico: Complaints.US@bhspecialty.com

Dirección postal: 1314 Douglas Street, Suite 1400, Omaha, NE 68102-1944

El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros, para conocer sus derechos o para presentar una queja ante el estado:

Llame: 1-800-252-3439

En línea: www.tdi.texas.gov

Correo electrónico: ConsumerProtection@tdi.texas.gov

Dirección postal: MC 111-1A, P.O. Box 149091, Austin, TX 78714-9091

Para comparar pólizas y precios

Visite **HelpInsure.com** para comparar precios y coberturas en pólizas de seguro para el hogar y automóvil. El sitio web es un servicio del Departamento de Seguros de Texas y de la Oficina del Asesor Público de Seguros (Office of Public Insurance Counsel, por su nombre en inglés).

INSURANCE WEBSITE NOTICE

To compare policies and prices

Visit **HelpInsure.com** to compare prices and coverages on home and auto insurance policies. The website is a service of the Texas Department of Insurance and the Office of Public Insurance Counsel.

AVISO DEL SITIO WEB DE SEGUROS

Para comparar pólizas y precios

Visite **HelpInsure.com** para comparar precios y coberturas en pólizas de seguro para el hogar y automóvil. El sitio web es un servicio del Departamento de Seguros de Texas y de la Oficina del Asesor Público de Seguros (Office of Public Insurance Counsel, por su nombre en inglés).

ENDORSEMENT

This endorsement, effective 12:01AM: **January 23, 2023**
Forms a part of Policy No.: **42-EPF-301044-06**
Issued to: **EnCap Investments L.P.**
By: **National Fire & Marine Insurance Company**

NOTICE OF SERVICE OF SUIT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

D&O, EPLI, FUND, E&O POLICY

To the extent required by law, we hereby designate the Commissioner of Insurance of your state or such other officer required by your state statute, including their successors in office, as our true and lawful agent for Service of Suit on this policy, provided that such process should be mailed to us at the following address:

Counsel
Legal Department
National Fire & Marine Insurance Company
1314 Douglas Street, Suite 1400
Omaha, Nebraska 68102-1944

All other terms and conditions of this policy remain unchanged.

ENDORSEMENT

This endorsement, effective 12:01AM: **January 23, 2023**
Forms a part of Policy No.: **42-EPF-301044-06**
Issued to: **EnCap Investments L.P.**
By: **National Fire & Marine Insurance Company**

OFAC/ECONOMIC SANCTIONS

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

D&O, EPLI, FUND, E&O POLICY